

Tender shall be submitted Online through EPS portal in the link
<https://eps.buyjunction.in/>

Request for Quote (RFQ)

**For Procurement of Alumina Magnesia Spinel Bricks for SMS – II
Ladle application of Bokaro Steel Plant, Bokaro.**

Tender No: T-26/25-26 Dt.19.01.2026

SAIL REFRACTORY COMPANY LIMITED (SRCL)

DUE DATE OF SUBMISSION ON OR BEFORE 11.00 Hrs on
09.02.2026

(Quotation/Offer received after Due Date & Time shall be rejected)

DUE DATE OF OPENING ON: 11.15 Hrs on 09.02.2026

(If the Tender opening date becomes a Holiday, tender shall be opened
on the next working day. Corrigendum will not be published / issued
for this reason)

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Section I – Overview of the RFQ

1.01 Objectives: SAIL Refractory Company Limited (SRCL) is a 100 % subsidiary of Steel Authority of India Limited (SAIL) which is the largest producer of steel in India, the leading steel-making company in India and SRCL is manufacturing Refractory Bricks.

The objective of this open tender is **Procurement of Alumina Magnesia Spinel Bricks for SMS – II Ladle application of Bokaro Steel Plant, Bokaro** of desired specification and quantity at most competitive price to meet our requirement and also to develop a long term relationship with vendors to ensure smooth supply of material and services.

1.02 Key Features in Purchase Process:-

- The tender is for **Procurement of Alumina Magnesia Spinel Bricks for SMS – II Ladle application of Bokaro Steel Plant, Bokaro** of desired specification and quantity. Tender shall be submitted Online through EPS portal in the link <https://eps.buyjunction.in/>
- Note: Tenderers should ensure that original documents pertaining to EMD (Demand Draft/ NEFT) should be submitted to purchase group dealing officer on or before due date & time, failing which their offer will not be opened at all. (If EMD exemption is availed, corresponding document shall be uploaded in the Part1 folder in EPS portal without fail.).
- The tenderer shall obtain the tender documents by down loading from SAIL website www.sailtenders.co.in (Plant : SAIL REFRACTORY COMPANY LIMITED) on free of cost.
- The tender documents complete in all respects along with EMD for **Rs.1,00,000/-** (separate DD) in favour of SAIL Refractory Company Limited , payable at Salem / NEFT (or) “Bid Securing Declaration”(Annexure 1.1) shall be submitted online through our EPS portal.

1.03 Advantages for Suppliers

For suppliers, the opportunities are –

Increased capacity utilization as possibility of getting order for bulk quantity. Achieve better economies of scale in raw material buying & production.

1.04 Requirement of SRCL

The requirement of SRCL is for **Procurement of Alumina Magnesia Spinel Bricks for SMS – II Ladle application of Bokaro Steel Plant, Bokaro** of desired specification and quantity.

1.05 Confirmation from Vendor:

- a. In case L1 backs out, re tendering would be resorted to in a transparent and fair manner in which backed out tenderer will not be considered. Further the EMD will be forfeited of the backed out tenderer and backed out tenderer will not be allowed to participate in any subsequent tenders till 6 Months.

1.06 How to fill up the bid:

The tender is to be submitted in three parts i.e. EMD bid (part 1)

Techno-commercial bid (Part 2) and Price bid (Part 3) as indicated below:

Part-I

EMD: Part 1 Bid - Earnest Money Deposit for Rs.1,00,000/- may preferably be submitted in the form of online transfer - NEFT, RTGS, SWIFT and our Bank Account details are attached (Annexure -1.4). The proof of such transfer / transaction needs to be uploaded online. However, EMD will also be accepted in the form of demand draft, pay order, Banker's Cheque or Bank Guarantee (BG) from any Scheduled Commercial Bank except Co-operative, Gramin Bank, **Catholic Syrian Bank and United Western Bank** as per Proforma (Appendix 1.1) provided in the tender document. The Bank Guarantee should be valid for 180 days from the date of opening of tender. EMD will not be accepted in cash. **List of eligible commercial banks is enclosed in Annexure 1.4.**

Micro & Small Enterprises (MSEs) / PSUs / Govt. Undertakings and Co-operative Societies/ Start-ups as recognized by Department of Industrial Policy & Promotion (DIPP) etc., are exempted from submission of EMD as per extant Government policy. For MSEs, the exemption will be extended on the basis of self-certified copy of Udyog Aadhar Memorandum (UAM) provided the concerned MSE is also registered in the MSME databank and MSE is registered for given scope of job/ procurement. SSI / NSIC certificate holders are also exempted from submitting EMD and should upload a copy of valid Entrepreneurs Memorandum, if available.

The offers submitted with documents for EXEMPTION OF EMD shall be provisionally accepted, if at any stage it is found that the offer does not satisfy the criteria for EXEMPTION OF EMD, and then the offer shall be liable for rejection.

Forfeiture of EMD: The EMD shall be forfeited:

- i) If the tenderer withdraws or modifies the tender on its own during the period of tender validity specified.
- ii) If the successful tenderer fails to furnish the PERFORMANCE BANK GUARANTEE/ SECURITY DEPOSIT if asked for.

In place of EMD, Bidders may submit duly signed “Bid Securing declaration” accepting that if they withdraw or modify their Bids during the period of validity, or if they are awarded the contract and they fail to sign the contract, or to submit a performance security before the deadline defined in the request for bids document, they will be suspended for the period of six months from being eligible to submit Bids for contracts. A format for Bid Security Declaration is attached at Annexure – 1.1.

No request for adjustment of earlier dues in place of EMD shall be entertained.

Note: Techno-Commercial Bids (Bid-2) will be opened only those tenderer who has submitted valid EMD or proper documents for exemption.

Tender without EMD in the desired manner/amount is liable to be rejected. No interest is payable by SRCL for retention of EMD.

The EMD of unsuccessful bidder will be discharged / returned as early as possible but not later than 30 days after the expiry of the period of bid validity or placement of order, whichever is later.

Part 2

Technical-Commercial Bid

- As part of the technical bid, the suppliers are required to upload Form-1 (included in Section IV) to indicate technical details & quantities offered are of desired specification and quantity to be supplied.
- The tenderer shall furnish documents required as per Eligibility Criteria.

- The techno commercial bid should contain information such as GST percentage, PAN NO, HSN code, and delivery details such as FOR –SRCL Stores.
- Suppliers are required to upload Forms 2, 3 and 4 (included in Section IV, whichever applicable) to indicate that they accept the terms and conditions as specified in Section I, II & III of this RFQ documents as well as applicable duties and tax rates.

All forms pertaining to the techno-commercial bid (i.e. Forms Nos. 1, 2, 3 and 4) are to be uploaded online only.

The documentary evidences against the technical eligibility criteria and financial turnover also to be uploaded along with the above forms.

The techno-commercial bid should not contain prices or any indication of prices of material offered. If prices are indicated there, such offers are liable to be rejected.

Procurement against this tender will be governed by the provisions enumerated in Govt. of India order no. P-45021/2/2017-PP(BE-II) dt. 15.06.2017 duly modified dt 28.05.2018, 29.05.2019 and 04.06.2020. Any subsequent modification / guidelines issued further from time to time shall also be applicable including withdrawal of this order by Government of India.

The tenderer shall comply with the DPE Guidelines, vide Office Memorandum No.DPE/7(4)/2017-Fin.(Part-I), Dt.30.07.2020. and subsequent amendment/clarification thereof.

Department of Expenditure Ministry of Finance, vide circular No. F.No.6/18/2019-PPD Dt.23-07-2020 has inserted Rule 144(xi) in the General Financial Rule (GFRs), 2017.

Submission of offer by the tenderer will construe that they have understood the provisions regarding restriction on SAIL as a PSU on procurement from a bidder of country which shares a land border with India as per Order No F No. 6/18/2019-PPD dated 23-07-2020 and subsequent amendments / clarifications thereof and is eligible to be considered for order placement.

Restriction on procurement from a bidder of a country which shares a land border with India:

1. Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority.
2. "Bidder" (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.
3. "Bidder from a country which shares a land border with India" for the purpose of this Order means: -
 - An entity incorporated, established or registered in such a country; or
 - A subsidiary of an entity incorporated, established or registered in such a country; or
 - An entity substantially controlled through entities incorporated, established or registered in such a country; or
 - An entity whose beneficial owner is situated in such a country; or

- An Indian (or other) agent of such an entity; or
 - A natural person who is a citizen of such a country; or
 - A consortium or joint venture where any member of the consortium or joint venture falls under any of the above
4. The beneficial owner for the purpose of (3) above will be as under:
- In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.
Explanation—
 - ✓ "Controlling ownership interest" means ownership of or entitlement to more than twenty-five per cent, of shares or capital or profits of the company;
 - ✓ "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;
 - ✓ In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;
 - ✓ In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;
 - ✓ Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;
 - ✓ In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.
5. An Agent is a person employed to do any act for another, or to represent another in dealings with third person.

Part 2 shall contain the following documents:

1. Form 1
2. Form 2
3. Form 3
4. Form 4
5. Documentary evidences against the technical eligibility criteria
6. Documentary evidences against the financial eligibility criteria
7. Annexure 1.2
8. Annexure 1.3

Part 3

The prices should be uploaded **with validity of 90 days**, from the date of Tender opening. As part of the price bid, suppliers are required to indicate item wise – rates as below:

- **INDIGENOUS suppliers have** to quote for item wise basic rate, GST, freight and any other charges separately.
- **However SRCL reserves the option to use the services of MJunction for determination of rates**

However, deviation, if any, proposed by the Tenderer may be separately indicated for acceptance or otherwise & such proposed deviation will not be treated as tampering for the purpose of applicable of this clause. But SRCL reserves the right to accept or reject such deviations.

It is the responsibility of the tenderer to submit the tender on time in the EPS Portal.

1.07 How to submit Tender/Bid:

- a. Your offer should be submitted online before schedule time.
- b. Suppliers are requested to submit the offer in three parts as described above.

1.08 Summary of evaluation process

The bid evaluation process will comprise of two steps

- 1 Step1: Techno-commercial evaluation
- 2 Step 2: Price bid evaluation

1.08.1 Step 1: Techno-commercial evaluation:

THE TECHNO-COMMERCIAL EVALUATION PROCESS WILL COMPRISE OF TWO STEPS TO BE CARRIED OUT SIMULTANEOUSLY – TECHNICAL EVALUATION & COMMERCIAL EVALUATION.

1.08.1.1 Technical evaluation

The technical evaluation process will comprise the following steps –

Checking of Forms & documents submitted by Tenderer as per RFQ and confirmation letter (**as per clause 1.05 of RFQ**) including documents related to Eligibility Criteria.

The team will study specifications submitted by each supplier and check for any deviation from tender specifications (as specified in Section II). In case of deviation, the team may ask for clarifications on the same. In case the clarifications are not acceptable to the team, the bid may not be accepted.

The team will evaluate capacity and capabilities of technically acceptable suppliers. For each item, it will then specify the maximum quantity that can be allocated to each supplier.

The capacity capping as well as item-wise maximum number of suppliers shall be finalised at the time of techno-commercial evaluation and before price bid opening.

For each item, the Technical team will decide on the maximum number of suppliers among whom the order will be split.

However, SRCL reserves the right to reject the offer of such parties who have failed to supply the material / not complying with the ordered terms issued by SRCL.

1.08.1.2 Commercial Evaluation

As part of the commercial evaluation process, the team will check whether suppliers have agreed to the commercial terms specified in Section I, II & III and other relevant commercial/ financial conditions

mentioned in the tender including Eligibility Criteria. In case of non-agreement, clarifications may be sought from the supplier. If the clarification is not found acceptable, the offer will be liable for rejection. For acceptable deviation suitable loading shall be done on offered rates.

The Techno-commercial Bid and Dummy Price break-up format should not contain any indication of Price, else the offer shall be rejected.

1.08.2 Step 2: Evaluation of price bids: The price bid evaluation process comprises two key elements viz: deciding ranking i.e. L1, L-2, L-3.... and order distribution accordingly.

- In case of acceptance of Bid-1, Techno-commercial offer (Bid-2) shall be examined and Techno- commercial Terms & Conditions shall be frozen.
- Price Bids (Bid-3) of bidders whose Techno-commercial offer have been accepted shall be opened.
- Tendered shall quote single LCNC Rate in Rs per Unit which will be valid for entire Quantity. Tenderer shall also provide Price break-up considering the tax.
- L-1 LCNC Price discovery shall be done through opening of Price Bids (Bid-3) OR On-line Reverse Auction process OR Combination of Both. The schedules/details of Price Bid opening OR Reverse Auction event shall be communicated to the techno-commercially suitable parties.
- Price Quoted shall Remain Firm during Currency of the Contract except for cases where Price Variation Clause has been stipulated.
- The management keeps option for obtaining price bids through On-line Reverse Auction (RA) which shall be conducted by SAIL service provider M/s Mjunction services limited.
- If for any reasons, it is decided not to conduct RA or if RA fails, techno-commercially acceptable bidders shall be requested to submit Physical Sealed Decrements and Original Physical Price Bid. In this case, the Original Price Bids and Physical Sealed Decrements shall be opened simultaneously on the same Day and case be processed as per extant rules.

1.09 Criteria for determining L-1 : Basis for L-1 will be decided on total composite value on LCNGST basis

The quoted price shall remain firm till completion of supply / contract unless otherwise specified in NIT. The Quoted Rate shall also be applicable for part quantity ordered in case of distribution of Order. Further if order for only part quantity is placed then within the validity of the contract, SRCL reserves the right to increase the ordered quantity up to the quantity for which price has been discovered.

1.09.1 For INDIGENOUS SUPPLIERS:

Price shall be quoted F.O.R SRCL basis, indicating taxes and duties, packing and forwarding with Freight and Insurance separately on PAID basis.

For working out above, for each item, the LCNC & ITR price shall be calculated considering the break-up as given below:

The L-1 Tenderers will be decided on the basis of the lowest on landed cost Net of GST i.e. (LCNC) basis.

1.10 Order distribution: No Order distribution
~~SRCL envisaged distribution of order quantity on two sources.~~

~~The distribution of order will be as per clause 2.1.4 below:~~

~~However all distributions shall be subject to matching the item wise L-1 LCNC rate (negotiation if required).~~

1.11 Ground rules for participation

1 Suppliers should provide complete, clear and thorough responses to all information requested in the RFQ. **If any one of the forms attached in Section IV of the RFQ document is not submitted or is incomplete in any respect, the bid is liable to be rejected.**

2 **Validity of Bids: At least 90 days from Tender Opening Date and In case of RA 30 days from the date of On-line Reverse Auction (RA).**

Each page of the offer including various forms, should be signed by the authorised officer(s) of the tenderer.

1.12 Key contact: 1.13 Other terms & conditions of tender:

Name & Designation	Address	Phone/E-Mail ID.
Mr D Suryanarayan GM(C, M&M) Mobile: 8903142685	PURCHASE DEPARTMENT, SAIL REFRACTORY CO LTD, Near Mamangam, Magensite PO, SALEM, TAMIL NADU PIN code:636302	Ph- 0427 -2341502 Email: srclpurchase@gmail.com
Ms K.Sirisha AGM (Comml) Mobile: 8986874887		

Other terms & conditions of tender:

- ✓ Offers should be fully typed. Hand written or overwritten offers are liable to be rejected.
- ✓ In case of mismatch in description of quantity/ amount in figures and words, the description in words shall be considered.
- ✓ SRCL reserves the right to accept any tender in whole or in part, or reject any or all tenders without assigning any reason, whatsoever.
- ✓ Tenders are invited on **FIRM PRICE BASIS**. The prices shall remain firm during currency of the contract or completion of supplies, whichever is later.
- ✓ Please note that Price BIDS will be opened/RA will be conducted only with those tenderers who are techno commercially eligible. SRCL reserves the right to opt for the services of MJunction for determination of rates through online auction.
- ✓ Copies of the offer **should not** be sent to any other officer of SRCL.
- ✓ The Purchase Preference to Indian Public Sector Undertaking/Government Organizations shall be based to the extent of guidelines issued by the Government of India.

1.12(a) The tenderer must declare whether the proprietor or any partner of the firm, or director of their company, has any relation with any employee working in SRCL, if so give the name of the employee and the relationship and also whether any of them has a relationship within the meaning of Section 2(77) of Companies Act, 2013 with any directors of SRCL and, if so, give details.

SRCL reserves the right to ask for further proof regarding the status/position of supply as well as establishment of an acceptable source, if required, during the finalization of the tender.

1.12(b) Cost of Bidding: The bidder shall bear all cost associated with the preparation and submission of its bid, and the SRCL. Herein after referred to as “The Purchaser” will in no case be responsible or liable for those costs, regardless of the condition or outcome of the bidding process.

1.12(c) Amendment to RFQ: Any extension of due date of submission or change in scope etc shall be available only on website

At any time prior to the deadline for submission of bids, the purchaser may, for any reason, whether at its own initiative or in response to a clarification requested by a bidder, modify the RFQ by issuing an amendment.

1.12(d) Language of Bid : The bids prepared by the Bidders and all correspondence and documents relating to the bid exchanged by the Bidder and the Purchaser, shall be in **English** language, provided

that any printed literature furnished by the Bidder may be written in another language so long as it is accompanied by an English translation of its pertinent passage in which case, for purposes of interpretation of the bid, the English translation shall govern.

1.12(e) Late Bids: Any bid received by the Purchaser after the deadline for submission of the Bids prescribed by the Purchaser, will not be opened.

1.13 Modification and Withdrawal of Bids:

-The bidders may modify or withdraw its bid after the submission of bid, provided that written notice of the modification or withdrawal is received by the Purchaser prior to the deadline prescribed for the submission of bids.

-No bid shall be allowed to be modified/withdraw subsequent to the deadline for submission of Bids unless asked for.

•**Clarification of Bids:** To assist in the examination, evaluation and comparison of Techno-commercial bids, the purchaser may, at their discretion, ask the bidder for a clarification of the bids. The request for clarification and the response shall be in writing.

1.14 SUBMISSION AND OPENING OF OFFERS:

Tenders will be accepted online up to **11:00 hours (IST) on 09.02.2026** and the same shall be opened at **11:15 hours on 09.02.2026**.

No separate communication should be made with any person in SRCL in this regard.

1.15 Security Deposit: In the event of placement of order, the successful tenderer shall furnish Security Deposit to the extent of 3% (Three percent) of the value of purchase order within 30 (Thirty) days, either in the form of Demand Draft favoring SRCL and payable at Salem or in the form of Bank Guarantee (**Appendix-1.2**) from any **Scheduled Bank except Co-operative Bank, Gramin Bank, Catholic Syrian Bank and United Western Bank** in India, which must be kept valid for covering the contractual delivery period plus six months for lodging claims, if any. ***List of eligible Commercial Banks for BG enclosed in Annexure 1.4***

Waiver: There will be no exemption from submission of Security Deposit unless otherwise specified.

Return of SD: On due performance and completion of the contract in all respects the SECURITY DEPOSIT will be returned to the Supplier without any interest.

In case the supplier/contractor delays submission of Security Deposit, a penalty of 0.2% of the original SD amount per completed day of delay, limited to an amount not exceeding 5% of the original SD amount shall be applicable. Payment for executed portion of order/contract shall only commence on submission of requisite SD.

1.16 TDS will be deducted from the bills as per Income Tax Rules. Where the TDS under Section 194Q will be deducted by SRCL, the TCS under Section 206C(1H) will not be charged since SRCL will not reimburse the same.

1.17 Banned/ Suspended Firms / Suppliers etc. are not eligible for submission of quotations against this tender, during the period for which they have been suspended / banned for business dealings with SAIL Plants/ Units. If submitted, these offers/ quotations will be treated as unsolicited and will not be considered Bidders having common directors/proprietors to make disclosures about common directors/postal addresses failing which there offer shall be rejected.

2. Purchase Preference Policies of the Government: Unless otherwise stipulated in the Tender, the Procuring Entity reserves its right to grant preferences to Class I Local Suppliers under Public

Procurement (Preference to Make in India) Order 2017” (MII) of Department for Promotion of Industry and Internal Trade, (DPIIT - Public Procurement Section) as revised from time to time.

2.1. Make in India Order: Orders issued by the Government of India regarding eligibility to participate and for purchase preference to “Local Suppliers” to encourage 'Make in India' and promote manufacturing and production of goods and services in India shall apply to this procurement, as detailed below.

2.1.1. Categories of Local Suppliers: Bidders/Contractors are divided into three categories based on Local Content. Local content in the context of this policy is the total value of the item procured (excluding net domestic indirect taxes) minus the value of imported content in the item (including all customs duties) as a proportion of the total value, in percent:

- 'Class-I local Supplier' with local content equal to or more than that prescribed in TIS or 50% if not prescribed.
- 'Class-II local Supplier' with local content equal to or more than that prescribed in TIS or 20% if not prescribed, but less than that applicable for Class-I local Supplier.
- 'Non - Local Supplier' with local content less than that applicable for Class-II local Supplier, in sub-clause above.

2.1.2. Eligibility to participate:

- Minimum local content for eligibility to participate: Only bidders meeting the minimum prescribed local content for the product shall be eligible to participate.
- Classes of Local Suppliers eligible to Participate: Only Class-I and Class-II local Suppliers shall be eligible to participate and not non-local Suppliers.

2.1.3 Thresholds:

The default threshold applicable are as follows:

- Local content eligibility for Class-I; Class-II local Suppliers and Non-local Suppliers shall be 50% and above; 20% and above but less than 50%; and less than 20%, respectively.
- The margin of purchase preference shall be 20%

2.1.4 Purchase preference to Class-I local Suppliers:

- For goods and works where the Goods are divisible by nature:
 - i) Among all qualified bids, the lowest bid shall be termed as L-1. If L-1 is 'Class-I local Supplier', the contract for full quantity shall be awarded to L-1.
 - ii) If the L-1 bid is not a 'Class-I local Supplier', 50% of the order quantity shall be awarded to L-1. After that, the lowest bidder among the 'Class-I local Supplier' whose quoted price falls within the margin of purchase preference shall be invited to match the L-1 price for the remaining 50% quantity, and a contract for that quantity shall be awarded him, subject to matching the L-1 price. In case such lowest eligible 'Class-I local Supplier' fails to match the L-1 price or accepts less than the offered quantity, the next higher 'Class-I local Supplier' within the margin of purchase preference shall be invited to match the L-1 price for the remaining quantity and so on, and the contract shall be awarded accordingly. If some quantity is still left uncovered on Class-I local Suppliers, such balance quantity shall also be ordered on the L-1 bidder.
- For goods and works where the Goods are not divisible, and in the procurement of services where the bid is evaluated on price alone:
 - i) Among all qualified bids, the lowest bid shall be termed as L-1. If L-1 is 'Class-I local Supplier', the contract shall be awarded to L-1.

- ii) If L-1 is not 'Class-I local Supplier', the lowest bidder among the 'Class-I local Supplier' shall be invited to match the L-1 price subject to Class-I local Supplier's quoted price falling within the margin of purchase preference, and the contract shall be awarded to such 'Class-I local Supplier' subject to matching the L-1 price.
- iii) If such lowest eligible 'Class-I local Supplier' fails to match the L-1 price, the 'Class-I local Supplier' with the next higher and so on, bid within the margin of purchase preference shall be invited to match the L-1 price, and the contract shall be awarded accordingly. If none of the 'Class-I local Supplier' within the margin of purchase preference matches the L-1 price, the contract shall be awarded to the L-1 bidder.

2.1.5. Verification of local content and violations:

- The 'Class-I local Supplier'/ 'Class-II local Supplier' at the time of tender, bidding, or solicitation shall be required to indicate the percentage of local content and provide self-certification that the item offered meets the local content requirement for 'Class-I local Supplier'/ 'Class-II local Supplier', as the case may be.
- In cases of procurement for a tender value above Rs 10 crores, the 'Class-I local Supplier'/ 'Class-II local Supplier' shall be required to provide a certificate from the statutory auditor or cost auditor of the company (in the case of companies) or a practising cost accountant or practising chartered accountant (in respect of Contractors other than companies) giving the percentage of local content.
- Bids with false declarations regarding Local contents shall be rejected as responsive, in addition to punitive actions under the MII orders and for violating the Code of Integrity as per the Tender Document.

Procurement of Alumina Magnesia Spinel Bricks for SMS – II Ladle application of Bokaro Steel Plant, Bokaro.

Scope of supply:

To manufacture and supply 95.67 MT of Alumina-Magnesia Spinel bricks as per the following for the SMS-II Ladle application of Bokaro Steel Plant, Bokaro:

S.No.	Area of application	Shape	Dimensions	Quality	Unit weight Kg	Quantity in Nos.	Total weight MT
1	Metal Zone of BSL SMS-II Steel Ladle	8/8	205x154/146x100	AMS	9.23	2480	22.89
2		8/30	205x165/135x100	AMS	9.23	1325	12.23
3		7/8	180x154/146x100	AMS	8.10	4975	40.30
4		7/30	180x165/135x100	AMS	8.10	2500	20.25

Technical Specification:

Al₂O₃ : 92% min.

Fe₂O₃ : 0.30 % max.

MgO : 4.00% max.

AP : 20% max.

BD : 3.10 g/cc min.

CCS : 700 kg/cm² min.

RUL : 1700 deg.C min. (T 0.5)

Refractoriness : 1855 deg.C min.

Weight tolerance : +/-0.5 kg

Performance Criteria:

The Spinel bricks should achieve a minimum service life of 105 heats. If a ladle is taken out of service due to the poor performance of the Spinel bricks, the payment for that particular ladle will be made on a pro-rata basis corresponding to the number of heats achieved below 105.

Packing: Bricks should be packed in 1 Ton wooden pallets at no extra cost.

Delivery Schedule: All the items should be delivered at BSL, Bokaro within 45 days from the date of PO.

The details of the Consignee address and the Invoice addresses are as under:

Invoice address: SAIL Refractory Company Ltd. P.B.No.565, SRCL Road, Mallamoopampatti, Salem, Tamil Nadu, 636005.	Dispatch address (Consignee address): The DGM (Stores) Stores department Steel Gate, Gate no.9 Bokaro Steel Plant Bokaro Steel City – 827001, Jharkhand.
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Quality:

1. The supplied materials should be of good quality and suitable for the desired application.
2. If the material is found to be below standard or exhibits poor/non-performance at any point, it will be rejected at BSL. Rejected materials should be replaced at BSL within 10 days, free of cost.

Quantity:

1. SRCL reserves the right to increase or decrease the mentioned quantities by 30% to meet the demands of the SMS shops of the BSL. SRCL also reserves the right to short-close the remaining balance of material if the steel plant does not require the quantity for which dispatch/manufacturing clearance has not been given.

LD : In event of supply not being effected within the contractual delivery schedule liquidated damages @ 0.5%, not by way of penalty, of the value of the materials without taxes, duties & freight, per week or part thereof of delay, subject to maximum of 10%, (or as applicable in the case of MSE as per extant SAIL MSE guideline) is recoverable from the Supplier without prejudice to the rights of Purchaser to procure the balance material at the risk and cost of the Supplier. The payment or deduction of such damages shall not relieve the Supplier from the contractual obligations to complete the supply or balance portion thereof in time as stipulated in Contract.

Payment Terms and Basis: 80% payment within 30 days of receipt of original invoice and BSL's GRN at SRCL. The remaining 20% payment shall be made after completion of the Ladle campaign and receipt of the performance certificate from BSL.

Terms and conditions:

- 1) The price should remain firm until the completion of the order. No PVC clause is applicable.
- 2) **Inspection:** Inspection will be carried out by SRCL's representative at BSL stores. In case of any damage or defects, the material shall be replaced by the supplier free of cost within 10 days.
- 3) The bricks are to be supplied to BSL, through the Tenderer's authorized transporter on a freight-paid basis. The price quoted should be inclusive of freight charges.
- 4) Just before dispatch, the scanned copy of the invoice should be sent to srclsales@gmail.com.
- 5) Based on the invoice, SRCL will issue a receipt to BSL stores for in-warding the truck and unloading the materials.
- 6) After the delivery of the materials, the original invoice and copy of BSL Stores' GRN should be sent to SRCL's Marketing Office for the release of payment.
- 7) The material should be dispatched with its test certificate.

Eligibility criteria for Procurement of Alumina Magnesia Spinel Bricks for SMS – II Ladle application of Bokaro Steel Plant, Bokaro.

Commercial Eligibility Criteria:

- 1) Average annual financial turnover of the bidder for any 3 (three) years of the last 4 (four) financial years, ending 31.03.2025 should be at least **Rs.50,09,444/-**.
- 2) In support of the financial turnover, the turnover certificate/audited profit and loss account duly certified by a practicing Chartered Accountant (with official seal and membership number) for any 3 (three) years of the last 4 (four) years ending 31.03.2025 to be submitted and shall contain the Unique Document Identification Number (UDIN). In case, the Audited Accounts have not been finalized for the FY 2024-25, the tenderer may submit UDIN generated Turn over certificate issued by practicing Chartered Accountant.

Technical Eligibility Criteria:

- 1) Experience of having successfully completed similar nature work by the bidder during last 7 (seven) years ending 31.12.2025, should be either of the following - (Bidder can submit a maximum of three work orders)

Three similar completed works (each) costing not less than the amount equal to **Rs.37,57,083/-**.

Or

Two similar completed works (each) costing not less than the amount equal to **Rs.50,09,444/-**.

Or

One similar completed work (each) costing not less than the amount equal to **Rs.62,61,805/-**.

Similar work: The tenderer should have supplied Alumina Magnesia Spinel (AMS) bricks for steel ladles in any integrated steel plant in India. In support of the work experience, the purchase orders and corresponding invoices to be submitted as per the technical eligibility criteria.

Commercial Terms and Conditions

3.01 Quantity Variation: SRCL at its option reserves the right to increase or decrease the tendered quantity +/- 30% during the contract period.

3.02 Guarantee: The MATERIAL supplied shall be guaranteed against poor quality, manufacturing defects and/or design defects and/or faulty workmanship

3.03 Delivery: ~~The delivery by Indigenous supplier shall be made to SRCL (Plant) stores. In case of INDIGENOUS suppliers the date of receipt in the SRCL stores shall be taken as date of delivery/supply.~~
Delivery to be made is indicated in Section II.

Price Quoted: F.O.R. – SAIL, Bokaro Steel Plant, Bokaro. Quoted rates shall be considered inclusive of packing & forwarding charges. No packing & forwarding charges shall be allowed separately unless specifically agreed by SRCL. The quoted Price/ Rate shall also be applicable for part quantity ordered in case of distribution of Order.

3.04 Mode of dispatch FOR INDIGENOUS SUPPLIERS: Mode of dispatch shall be by road. The seller shall be responsible for making all transportation arrangements for timely supply of materials to meet the delivery schedule. Materials shall be dispatched by road in full truckloads, fully covered. Transportation shall be arranged by the supplier at no extra cost on door delivery basis.

3.05 Security Deposit: In the event of placement of order, the successful tenderer shall furnish Security Deposit to the extent of 3% (Three percent) of the value of purchase order within 30 (Thirty) days, either in the form of Demand Draft favoring SRCL and payable at Salem or in the form of Bank Guarantee (Appendix 1.2) from any **Scheduled Bank except Co-operative Bank, Gramin Bank, Catholic Syrian Bank and United Western Bank** in India, which must be kept valid for covering the contractual delivery period plus six months for lodging claims, if any. **List of eligible Commercial Banks for BG enclosed in Annexure 1.4.**

Waiver: There will be no exemption from submission of Security Deposit/ Performance Guarantee Bond unless otherwise specified.

Return of SD / PGB: On due performance and completion of the contract in all respects the SECURITY DEPOSIT / PBG will be returned to the Supplier without any interest.

In case the supplier/contractor delays submission of Security Deposit / Performance Guarantee, a penalty of 0.2% of the original SD / PG amount per completed day of delay, limited to an amount not exceeding 5% of the original SD / PG amount shall be applicable. Payment for executed portion of order/contract shall only commence on submission of requisite SD/PG.

3.06 Packing & Markings: As indicated in tender special conditions in (Section - II)

3.07 Inspection: FOR INDIGENOUS SUPPLIERS: As indicated in tender special conditions in (Section - II)

3.08 Weighment: INDIGENOUS SUPPLIERS - The weighment at SRCL weigh Bridge shall be final and binding on the supplier.

3.09 Insurance For INDIGENOUS SUPPLIERS: The supplier shall arrange insurance of the goods at their cost.

3.10 Payment Terms: INDIGENOUS SUPPLIERS: As per Section-II

3.11 Taxes & Duties For INDIGENOUS SUPPLIERS: GST shall be payable extra at the rate ruling on the date of despatch. The supplier has to provide the duplicate for the transporters copy of invoice (or the documents as prescribed by GST) along with the material to enable the SRCL plant to avail GST benefit. The necessary formalities and rules of excise must be followed for preparing GST invoice to avoid any discrepancy at the time of receipt of the material. In the event of GST could not be availed due to faulty invoice, the amount so claimed shall be recoverable from the supplier's pending or forthcoming bills. In case the bills are not supported by GST documents, the claim for GST duty shall be withheld and the same shall be released on presentation of the requisite documents. Party shall quote HSN code in their offer and on all despatch documents.

Other Taxes – The supplier shall indicate if any other taxes are applicable for any particular state **and this should be indicated in Techno commercial Bid**

All tax rates currently applicable should be indicated in the techno-commercial bid. Duties and taxes, however, same will be reimbursed against documentary evidence at the rates applicable at the time of despatch.

3.12 Claims:

In case any pallets/ material is found damaged externally at the time of receipt at SRCL plant sites, such material would be subjected for detailed checking by a SRCL representative and the report would be sent to the supplier who should arrange for immediate replacement in case any item is found missing or damaged. If damage/ defect stated above are found due to improper and inadequate packing before shipment, the cost of replacement would be borne by the supplier. In case materials are found short supplied or in damaged condition for reasons attributable to the supplier, claim in this regard will be intimated to the supplier within 90 days from the date of receipt of materials at the place of destination. The supplier shall arrange for replacement free of cost. The claim will be corroborated by the investigation report made by the authorised representative of the purchaser with the participation of the supplier's representative who may like to be present. The purchaser will give sufficient advance notice to the supplier for deputing his representative.

3.13 Arbitration & Reconciliation

As per relevant clauses of General commercial terms & conditions for Purchase contracts (SAIL P-1) applicable for indigenous suppliers(Refer www.sailtenders.co.in)

3.14 Liquidated Damages

Time is the essence of the contract. For deliveries beyond the dates agreed, liquidated damages, not by way of penalty shall be levied at the rate of 0.5% of the contract value (excluding taxes and duties) of the goods for every delayed week or part thereof, subject to a maximum of 10% (Refer www.sailtenders.co.in)

3.15 Risk Purchase

As per relevant clauses of General commercial terms & conditions for Purchase contracts (Sail P-1) applicable for indigenous suppliers(Refer www.sailtenders.co.in)

3.16 Force Majeure

As per relevant clauses of General commercial terms & conditions for Purchase contracts (Sail P-1) applicable for indigenous suppliers(Refer www.sailtenders.co.in)

3.17 Legal Jurisdiction

As per relevant clauses of General commercial terms & conditions for Purchase contracts (sail P-1) applicable for indigenous suppliers(Refer www.sailtenders.co.in)

3.17.1 FOR INDIGENOUS SUPPLIERS

All suits and legal proceedings by or against SRCL in any matter arising out of any legal dispute, jurisdiction shall be appropriate civil court at Salem

3.18 Exception to the Tender Document:

SRCL, in its sole discretion, unconditionally and without having to assign any reason, reserves to itself the right

- i) To accept or reject the lowest offer or any other tender or all the tenders
- ii) To accept or reject any bid in full or in part.
- iii) To apportion the total quantity amongst different suppliers.
- iv) To amend/modify techno-commercial terms & conditions if any, before seeking price bids for next six month requirement.
- v) To foreclose the tender.

3.19 Rescinding of Contract: SRCL reserves the right to suspend/terminate/divert/short close the order, if any supplier's performance is found unsatisfactory. The supplier will not be entitled to and claim any loss and damage because of and owing to such suspension/cancellation/termination/diversion /short closure and SRCL and SRCL will not be liable for the same.

Further SRCL reserve right to alter the item wise order quantity by +/-30% of the total ordered quantity, before completion of total supply.

3.20 Exclusions/Deviations: Exclusions/deviations in the offer, if any, shall be clearly stated under separate heading "EXCLUSIONS/ DEVIATION" quoting the respective section number in the RFQ document with justification. Approving such deviations shall be at the discretion of the purchaser.

3.21 General Terms & Conditions:

The RFQ shall be read in conjunction with the 'General Conditions of Contract (SAIL- P1)' and 'Invitation to Tender' published by the purchaser together with any other document issued and forming part of this tender. All these documents shall form the complete set of documents. They are complementary and anything called for by one and not called by the other shall be considered as binding, as though called for by all. Wherever the clauses stipulated in the ' General Conditions of Contract ' are contradictory to those stated herein, terms indicated in this RFQ, shall have precedence. The general conditions of the contract governing supply contracts of SRCL (SAIL-P1) shall apply except to the extent it is amended herein.

Explanation of Forms to be filled up:

Form 1: Technical specifications & quantity requirement

Please use this form to provide basic information on the technical specifications of the material and quantities that you have offered to supply to SRCL. If the specifications are as per tender specifications then under each column specify ‘**as per tender**’. If there is deviation in any one or more of the technical parameters, then explain the deviation. Please submit this form as a part of the techno-commercial bid.

Form 2: Taxes and duties (for Indian Suppliers)

Please use this form to specify the taxes and duties as applicable for you Please submit this form as a part of the techno-commercial bid

Form 3: Mandate Form

Form 4: Other details of Overseas Suppliers: NOT APPLICABLE

The below forms will be used for the price bid evaluation:

Form 5: Item wise base price (for -Indian Suppliers)

In this form please specify the base price of each item. The base price includes ex-works+ packaging & forwarding + freight and insurance costs + GST + Other taxes. Please submit this form as a part of the price bid

Form 6: Item wise price on FOB & CFR basis (for -Overseas suppliers): NOT APPLICABLE

FORM 1: TECHNICAL BID

Tender No. T-26/25-26 dt.19.01.2026

Procurement of Alumina Magnesia Spinel Bricks for SMS – II Ladle application of Bokaro Steel Plant, Bokaro.

Scope of supply:

To manufacture and supply 95.67 MT of Alumina-Magnesia Spinel bricks as per the following for the SMS-II Ladle application of Bokaro Steel Plant, Bokaro:

S.No.	Area of application	Shape	Dimensions	Quality	Unit weight Kg	Quantity in Nos.	Total weight MT
1	Metal Zone of BSL SMS-II Steel Ladle	8/8	205x154/146x100	AMS	9.23	2480	22.89
2		8/30	205x165/135x100	AMS	9.23	1325	12.23
3		7/8	180x154/146x100	AMS	8.10	4975	40.30
4		7/30	180x165/135x100	AMS	8.10	2500	20.25

Technical Specification:

Al₂O₃ : 92% min.

Fe₂O₃ : 0.30 % max.

MgO : 4.00% max.

AP : 20% max.

BD : 3.10 g/cc min.

CCS : 700 kg/cm² min.

RUL : 1700 deg.C min. (T 0.5)

Refractoriness : 1855 deg.C min.

Weight tolerance : +/-0.5 kg

Performance Criteria:

The Spinel bricks should achieve a minimum service life of 105 heats. If a ladle is taken out of service due to the poor performance of the Spinel bricks, the payment for that particular ladle will be made on a pro-rata basis corresponding to the number of heats achieved below 105.

Packing: Bricks should be packed in 1 Ton wooden pallets at no extra cost.

Delivery Schedule: All the items should be delivered at BSL, Bokaro within 45 days from the date of PO.

The details of the Consignee address and the Invoice addresses are as under:

Invoice address: SAIL Refractory Company Ltd. P.B.No.565, SRCL Road, Mallamoopampatti, Salem, Tamil Nadu, 636005.	Dispatch address (Consignee address): The DGM (Stores) Stores department Steel Gate, Gate no.9 Bokaro Steel Plant Bokaro Steel City – 827001, Jharkhand.
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Quality:

1. The supplied materials should be of good quality and suitable for the desired application.
2. If the material is found to be below standard or exhibits poor/non-performance at any point, it will

be rejected at BSL. Rejected materials should be replaced at BSL within 10 days, free of cost.

Quantity:

1. SRCL reserves the right to increase or decrease the mentioned quantities by 30% to meet the demands of the SMS shops of the BSL. SRCL also reserves the right to short-close the remaining balance of material if the steel plant does not require the quantity for which dispatch/manufacturing clearance has not been given.

LD : In event of supply not being effected within the contractual delivery schedule liquidated damages @ 0.5%, not by way of penalty, of the value of the materials without taxes, duties & freight, per week or part thereof of delay, subject to maximum of 10%, (or as applicable in the case of MSE as per extant SAIL MSE guideline) is recoverable from the Supplier without prejudice to the rights of Purchaser to procure the balance material at the risk and cost of the Supplier. The payment or deduction of such damages shall not relieve the Supplier from the contractual obligations to complete the supply or balance portion thereof in time as stipulated in Contract.

Payment Terms and Basis: 80% payment within 30 days of receipt of original invoice and BSL's GRN at SRCL. The remaining 20% payment shall be made after completion of the Ladle campaign and receipt of the performance certificate from BSL.

Terms and conditions:

- 1) The price should remain firm until the completion of the order. No PVC clause is applicable.
- 2) **Inspection:** Inspection will be carried out by SRCL's representative at BSL stores. In case of any damage or defects, the material shall be replaced by the supplier free of cost within 10 days.
- 3) The bricks are to be supplied to BSL, through the Tenderer's authorized transporter on a freight-paid basis. The price quoted should be inclusive of freight charges.
- 4) Just before dispatch, the scanned copy of the invoice should be sent to srcsales@gmail.com.
- 5) Based on the invoice, SRCL will issue a receipt to BSL stores for in-warding the truck and unloading the materials.
- 6) After the delivery of the materials, the original invoice and copy of BSL Stores' GRN should be sent to SRCL's Marketing Office for the release of payment.
- 7) The material should be dispatched with its test certificate.

Eligibility Criteria:-

Commercial Eligibility Criteria:

- 1) Average annual financial turnover of the bidder for any 3 (three) years of the last 4 (four) financial years, ending 31.03.2025 should be at least **Rs.50,09,444/-**.
- 2) In support of the financial turnover, the turnover certificate/audited profit and loss account duly certified by a practicing Chartered Accountant (with official seal and membership number) for any 3 (three) years of the last 4 (four) years ending 31.03.2025 to be submitted and shall contain the Unique Document Identification Number (UDIN). In case, the Audited Accounts have not been finalized for the FY 2024-25, the tenderer may submit UDIN generated Turn over certificate issued by practicing Chartered Accountant.

Technical Eligibility Criteria:

- 1) Experience of having successfully completed similar nature work by the bidder during last 7 (seven) years ending 31.12.2025, should be either of the following - (Bidder can submit a maximum of three work orders)

Three similar completed works (each) costing not less than the amount equal to **Rs.37,57,083/-**.

Or

Two similar completed works (each) costing not less than the amount equal to **Rs.50,09,444/-**.

Or

One similar completed work (each) costing not less than the amount equal to **Rs.62,61,805/-**.

Similar work: The tenderer should have supplied Alumina Magnesia Spinel (AMS) bricks for steel ladles in any integrated steel plant in India. In support of the work experience, the purchase orders and corresponding invoices to be submitted as per the technical eligibility criteria.

We hereby confirm to supply the material as per details and specifications given above.

Signature and Seal of company

FORM 2: TAXES AND DUTIES (Indian Suppliers)

INSTRUCTION TO FILL UP FORM Please use this form to specify the Excise duty, Central Sales tax / VAT and other taxes and duties applicable for SRCL Plant.

1 SUPPLIER NAME:
2 GST Applicable / Not applicable
Present Rate (if applicable)----- % HSN CODE

3. GST REGISTRATION NUMBER:

4. PAN NUMBER:

PLEASE INDICATE THE FOLLOWING NUMBERS APPLICABLE FOR YOUR COMPANY
OTHER TAXES AND DUTIES APPLICABLE (PERCENT)

The tenderer should furnish GST registration number (Copy of registration to be attached) along with the PAN card copy. The GST claimed on each bill will be refunded to the successful tenderer only after ascertaining that the GST payment has been made by them to the Government Authorities. Till then, the GST amount will be deducted and kept by Finance Dept of SRCL. Change of prices and Tax percentages will not be allowed after opening of offers.

6. OTHER TAXES AND DUTIES APPLICABLE (PERCENT)

Description	In figures	In words	Description	In figures	In words

Signature and seal of company

FORM 3: MANDATE FORM

OPTION TO RECEIVE E-PAYMENT THROUGH CINB, NEFT, RTGS

1. NAME :-

2. ADDRESS :-

3. IT PAN :-

4. PARTICULARS OF BANK ACCOUNT:-

a) Bank Name :-

b) Branch Name :-

c) Branch Address :-

d) IFSC CODE :-

e) WHETHER BRANCH IS NEFT ENABLED? YES / NO

f) WHETHER BRANCH IS RTGS ENABLED? YES / NO

g) ACCOUNT NO :-

5. E-MAIL ID FOR RECEIVING SYSTEM GENERATED PAYMENT ADVICE:-

I hereby declare that the particulars furnished above are correct. In the event any transaction is delayed or not effected at all, for reasons not attributable to SAIL Refractory Co. Ltd., I will not hold SAIL Refractory Co. Ltd., responsible. I also agree to bear the transaction charges, if any, related to e-payment.

NAME OF THE FIRM :-

(SIGNATURE AND NAME OF THE AUTHORISED SIGNATORY, WITH SEAL)

BANK CERTIFICATION:-

This is to certify that the particulars furnished at para (4), above, are correct and completed as per our records.

Date:-

(Bank Manager's Sign & Seal)

Note:- A cancelled cheque pertaining to the bank account mentioned above is to be attached.

FORM 4: DETAILS OF OVERSEAS SUPPLIERS (NOT APPLICABLE)

FORM 5: ITEM WISE BASE PRICE (FOR INDIAN SUPPLIERS)

Price Format

This form will be used for the price bid evaluation. In this form please specify the item wise base price, packaging & forwarding + freight & insurance costs and all allied cost (**up to BSL plant**) and GST, each component separately . Please submit this form as the price bid. All Components of cost/ rate should be clearly written in Price Bid itself.

Tender No.T-26/25-26 – Procurement of Alumina Magnesia Spinel Bricks for SMS – II Ladle application of Bokaro Steel Plant, Bokaro (For delivery Schedule please see Section II).

Supplier's Name: _____

Tenderer offer No. _____ Dated: --/--/2026

This form will be used for the price bid evaluation. In this form please specify the item wise rates.

S. No	Item Description	Quantity (Nos.)	Unit Rate in Rs.	Total Value in Rs.
1.	AMS brick 8/8	2480		
2.	AMS brick 8/30	1325		
3.	AMS brick 7/8	4975		
4.	AMS brick 7/30	2500		
		Grand Total =		
		GST =		
		Total cost =		

Signature and seal of company

Note: This format to be uploaded only in the Item level page (Part 3- Price bid) and not in the Techno-commercial page. If prices are indicated in the techno-commercial bid, such offers are liable to be rejected.

Bid-Securing Declaration

(In lieu of EMD)

Date: *[insert date (as day, month and year)]*

Bid No.: *[insert number of bidding process]*

Alternative No.: *[insert identification No if this is a Bid for an alternative]*

To: *[insert complete name of Public Body]*

I/We*, the undersigned, declare that:

I/We* understand that, according to your conditions, bids must be supported by a Bid-Securing Declaration in lieu of Earnest Money Deposit.

I/We understand that if I/We withdraw or modify our Bids during the period of validity, or if I/We are awarded the contract and I/We fail to sign the contract, or to submit a performance security before the deadline defined in the request for bids document, I/We will be suspended for the period of six months from being eligible to submit Bids for all future contracts.

I/We* understand this Bid Securing Declaration shall cease to be valid if I am/we are* not the successful Bidder, upon the earlier of (i) the receipt of your notification of the name of the successful Bidder; or (ii) thirty days after the expiration of the validity of my/our* Bid.

Signed: *[insert signature of person whose name and capacity are shown]* In the capacity of *[insert legal capacity of person signing the Bid Securing Declaration]*

Name: *[insert complete name of person signing the Bid Securing Declaration]*

Duly authorized to sign the bid for and on behalf of: *[insert complete name of Bidder]*

Dated on _____ day of _____, _____ *[insert date of signing]*

Corporate Seal (where appropriate)

[Note: In case of a Joint Venture, the Bid Securing Declaration must be in the name of all partners to the Joint Venture that submits the bid.]

****Please delete as appropriate***

FORMAT FOR UNDERTAKING TO BE UPLOADED / SUBMITTED BY THE AUTHORIZED SIGNATORY OF THE BIDDER ON ITS LETTERHEAD ALONG WITH THE TENDER DOCUMENTS

I..... (Name and Designation) duly authorized to sign the bid for and on behalf of M/s (herein after called the bidder) for the purpose of Tender No..... of (SRCL, SALEM), do hereby solemnly affirm and state, on the behalf of the bidder including its constituents, as under:

I/We have read the contents of the above mentioned tender carefully and understand that my/ our offer will be evaluated based on the documents/ credentials submitted along with the offer and same shall be binding upon me/us. I/We undertake and warrant that in relation to the aforesaid tender, our bid was developed genuinely, independently and made with the intention to accept the Contract, if awarded.

1. BID SECURING DECLARATION:

I/ We agree that if I/We withdraw or modify our Bid during the period of validity, or if I / We are awarded the contract and I/ We fail to sign the contract, or to submit a performance security before the deadline defined in the request for bids document, I/We will be liable to be suspended for a period of six months from being eligible to submit bids against all future tenders of SRCL, SALEM

2. UNDERTAKING FOR NON-COLLUSIVE TENDERING:

I/We undertake and warrant that our bid was not prepared with any agreement, arrangement, communication, understanding, promise of undertaking with any person (including any other bidder or competitor) regarding i)prices; ii) methods, factors or formulas used to calculate prices; iii)an intention or decision to submit a bid; iv)an intention or decision to withdraw a bid; v)the submission of bid that does not conform with the requirements of the tender; vi)the quality, quantity, specifications or delivery particulars of the products or services to which this tender relates; and vii) the terms of the bid, and we also undertake that we will not, prior to the award of the Contract, enter into or engage in any of the foregoing.

3. SUB-CONTRACTING, WHEREVER APPLICABLE:

Disclosure in case of Job/ Project Contracts: I/We warrant that we have duly disclosed and will continue to disclose all intended sub-contracting arrangements relating to the Tender that we are required to disclose, including those which are entered into after the Contract is awarded.

4. AUTHENTICITY OF DOCUMENTS SUBMITTED FOR BID EVALUATION:

I/We declare that the information and documents submitted along with the tender documents by me/ us are complete and correct and I/we are fully responsible for the authenticity and correctness of the submitted information and documents. I/We declare and certify that I/we have not made any misleading or false representation anywhere in the tender submitted including the annexures thereto.

I/We understand that at any time during process of evaluation of tender or at any time after

award of contract, if any information / document submitted by me / us are found to be suppressing facts / forged / false / fabricated / fudged or incorrect, it shall lead to forfeiture of the EMD/SD and

Performance Guarantee, if submitted, besides any other action provided in the contract including banning under the extant Guidelines for Banning of Business Dealings of SAIL and initiating any legal action as deemed fit. Further, I/we and all my/ our constituents understand that my/ our offer shall be summarily rejected.

5. **REPRESENTATION OF SINGLE / MULTIPLE FIRMS BY THE AUTHORIZED PERSON:**

I/We hereby declare that I/we are not representing any other firm participating against this tender. OR

I/We hereby declare that I/we also represent the following firm(s) participating against this tender:-

Sl No.	Name of the firm
1.	
2.	

6. **RELATIONSHIP WITH ANY EMPLOYEE WORKING IN PLANT / UNIT CONCERNED OR DIRECTORS OF SAIL INCLUDING ITS SUBSIDIARIES:**

a) I/We hereby declare that the Proprietor or any Partner of the Company or Director of our company has no relationship (within the meaning of Section-2 (77) of the Companies Act 2013) with any employee working in SRCL, SALEM /any of the Directors of SRCL, SALEM.

OR

I/We hereby declare that the following Proprietor/Partner/Director of our company (has relationship (within the meaning of Section-2 (77) of the Companies Act 2013) with following employee working in SRCL, SALEM Directors of SRCL:-

Name of Proprietor/ Partner/ Director of our company Name of SRCL employee/

Name of Proprietor/ Partner/ Director of our company	Name of SRCL/ Director of SRCL	Type of relationship
1.		
2.		

(Strike-off the portion which is not applicable)

b) I/We further declare that if the contract is awarded to me/us, I/we shall inform if any of my/our relative(s) as defined above, join/joins the SRCL or joins as Director of SRCL including its subsidiaries at any time subsequent to the award and during continuance of the contract.

7. **ANTI BRIBERY MANAGEMENT SYSTEM (ABMS) DECLARATION:**

I/We undertake that we shall not give or take any financial or non- financial bribe, to or from any one during the tender or during the execution of the contract thereafter and if I/We notice any such incident happening, I/We shall report to SAIL Vigilance.

8. MINIMUM LOCAL CONTENT AS APPLICABLE & LAND BORDER SHARING REQUIREMENTS, IF APPLICABLE

I/ We declare that I/We comply with the provisions of the revised Public Procurement (Preference to Make In India), Order 2017 dated 16.09.2020, as amended from time to time and also comply with the provisions of DoE Order dated 23.07.2020 with respect to the compliance related to land border sharing requirements and subsequent amendments thereto as applicable, on the date of submission of tender and at the time of Placement of Contract.

9. CONFLICT OF INTEREST (IF APPLICABLE):

I/We undertake that we shall not make any improper use of information obtained from the Purchaser with intent to gain unfair advantage in the Tender Process or for personal gain including that of our affiliates and that I/we shall suo-moto proactively declare any conflict of interest (coming under the definition mentioned above - pre-existing or as soon as these arise at any stage) in any Tender Process or execution of the contract. I/We understand that failure to do so shall amount to a violation of the code of integrity.

- 10.** I/We declare that I /We have disclosed any previous transgressions of code of integrity with any **entity** in any country during the last three years or of being debarred by any other procuring entity in our bid documents. Failure to do so would amount to violation of the code of integrity.

- 11. ACCEPTANCE OF ALL THE TERMS & CONDITIONS:** Participation in this Tender **confirms** the acceptance of all the terms & conditions by bidder without any deviation/condition and forms if any attached with tender document.

Seal and Signature of Authorized Signatory

(All the pages to be signed by an authorised person on the Tenderer's behalf on Tenderer's Letter head)

Annexure - 1.3 FORMAT OF CERTIFICATE FOR LOCAL CONTENT

**Declaration by Statutory Auditor of the vendor for values above Rs 10 Crs OR Self
declaration for values below Rs 10 crs.**

Certificate for M/s. Sail Refractory Company Limited,

In reference to SRCL- RFQ No.....dt..... and
M/s.....Offer no.....

To whomsoever it may concern

We, M/s..... (Name of Supplier) having regd. Office
at..... & having their
manufacturing facility at
Hereby certify that in the event of placement of order, M/s
.....shall supply the Tendered item(s) with domestic value addition
of (more than 20% or more
than 50%, mention whichever is relevant) in line with Notification No. P-
45021/2/2017-PP (BE-II) Dt. 04.06.2020 issued by Government of India.

Domestic value addition for Tendered item has been calculated as below:

“Domestic value addition shall be the net selling price (invoiced price excluding net
domestic taxes and duties) minus the landed cost of imported input materials at the
manufacturing plant in India (including all customs duties) as a proportion of the net
selling price, in per cent.”

Further we also certify that the company is eligible to avail the benefits as per Make
in India policy (Gazette No. G.S.R 385 (E) of Ministry of Steel, Government of India).

Yours faithfully
(NAME)

For & on behalf of
M/s.....

(Signature and Name with seal)

Note: This letter should be submitted on the Letter-Head of the Supplier and should be
signed by authorized person.

Statutory Auditor of M/s.

**Self-Certificate/Certificate from the statutory auditor or cost auditor of the company (in the case of companies)
or from a practising cost accountant or practising chartered accountant (in respect of suppliers other than
companies) indicating whether they are class-I local supplier / class-II local supplier.**

LIST OF ELIGIBLE COMMERCIAL BANKS FOR ACCEPTANCE OF BGs

SL.NO.	BANK NAME
STATE BANK OF INDIA AND ASSOCIATES	
1.	STATE BANK OF INDIA
2.	STATE BANK OF INDORE
NATIONALIZED BANK	
3.	ALLAHABAD BANK
4.	ANDHRA BANK
5.	BANK OF BARODA
6.	BANK OF INDIA
7.	BANK OF MAHARASHTRA
8.	CANARA BANK
9.	CENTRAL BANK OF INDIA
10.	CORPORATION BANK
11.	DENA BANK
12.	INDIAN BANK
13.	INDIAN OVERSEAS BANK
14.	ORIENTAL BANK OF COMMERCE
15.	PUNJAB NATIONAL BANK
16.	PUNJAB & SIND BANK
17.	SYNDICATE BANK
18.	UCO BANK
19.	UNION BANK OF INDIA
20.	UNITED BANK OF INDIA
21.	VIJAYA BANK
OTHER PUBLIC SECTOR BANK	
22.	INDUSTRIAL DEVELOPMENT BANK OF INDIA PVT. LTD.
PRIVATE SECTOR BANK	
23.	HDFC BANK LTD.
24.	ICICI BANK LTD.
25.	AXIS BANK LTD.
26.	YES BANK LTD.

(Format for EMD)

PROFORMA for BANK GUARANTEE FOR EARNEST MONEY DEPOSIT

(To be submitted in a non –judicial stamp paper of RS .100/-)

(Name of Bank)

To

SAIL REFRACTORY COMPANY LIMITED,
SALEM 636 302

Dear Sir,

At the request and on behalf of our client, M/s and against their tender for issued by you, we are establishing this guarantee as Earnest Money Deposit, as required by you under the terms of your invitation to tender.

We, the Bank, further agree that if our client commits any breach of the terms and conditions of the said invitation to Tender, we hereby unconditionally and irrevocably agree and undertake to pay to you on demand without protest or demur the amount of Rs being Earnest Money required to be furnished under the conditions of the said Invitation to Tender.

We further agree that whether the said M/s has committed any breach of the terms and conditions of the said Invitation to Tender or not, your decision in the matter shall be final and binding on us.

Notwithstanding anything herein contained, our liability under this guarantee is restricted to Rs.....(Rupees only).

This guarantee is valid for Days from.....

We further agree that this guarantee herein contained shall remain in full force and binding until it is released by you in writing provided always that this guarantee shall on no event remain in force after.....without prejudice to your claim arising and demand from or otherwise notified to us in writing on or before the said date which will be enforceable against us notwithstanding that the same is in force after the said date.

We, the said Bank, lastly undertake not to revoke this guarantee except with your previous consent in writing.

We further agree that any change in the constitution of your Company or of our client or of ourselves shall not in any way affect this guarantee or discharge our liability herein.

Yours faithfully For and on behalf of
(Name of Bank)

Dated: Thisday of26

SECURITY DEPOSIT BANK GUARANTEE FORMAT

Proforma of Bank Guarantee for Security Deposit cum Performance Guarantee Bond

(To be submitted on Non-Judicial Stamp Paper of Value Rs.100/- in favour of SAIL REFRACTORY COMPANY LIMITED, SALEM after Order finalization. Non-Judicial Stamp Paper should be purchased in the Name of Issuing Bank)

To

SAIL REFRACTORY COMPANY LIMITED
SALEM -636302.

Bank Guarantee No..... Date:.....

Letter of Guarantee

1. Whereas M/s..... (herein after referred to as the Supplier) and M/s. SAIL REFRACTORY COMPANY LIMITED (herein after referred to as the Purchaser) have entered into a Contract vide Purchase Order No..... dated..... (herein after called the said Contract) for the supply of.....Metric Tonnes of..... (Herein after referred to as Materials/Services) to the Purchaser.
2. We,.....(Name, address and e-mail id of the Scheduled Bank issuing the BG) at the request of the Supplier, do hereby undertake and indemnify and keep indemnified the Purchaser to the extent of Rupees..... against any loss or damage that may be caused to or suffered by the Purchaser, by reason of any breach by the Supplier of any of the terms and conditions of the said Contract and/ or in the performance of the said contract by the Supplier. We agree that the decision of the Purchaser as to whether any breach of any of the terms and conditions of the said Contract or in the performance thereof has been committed by the Supplier and the amount of loss or damage that has been caused to or suffered by the Purchaser shall be final and binding on us and the amount of the said loss or damage shall be paid by us forthwith to the Purchaser on demand and without protest or demur.
3. We, (Name, address and e-mail id of the Scheduled Bank issuing the BG) hereby further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for satisfactory performance and fulfilment in all respects of the said Contract and that it shall continue to be enforceable for (a) Six months after the date of Bill of Lading of the last consignments of the materials/date of receipt of last consignment, whichever is applicable under the said contract or (b) in the event of any dispute(s) between the Purchaser and the Supplier, until such period(s) the dispute is settled fully, whichever date is the latest and that if any claim accrues or arises against us,(Name and address of the Scheduled Bank issuing the BG) by virtue of this guarantee before the dates referred to at (a) and (b) herein above, the same shall be enforceable against us,.....(Name and address of the Scheduled Bank issuing the BG) notwithstanding the fact that the same is enforced after the date referred at (a) or (b) herein above, whichever date is the latest, provided that notice of any such claim has been given by the purchaser before the dates referred to at (a) or (b) herein above, as the case may be. Payments under this letter of the Guarantee shall be made promptly upon our receiving the notice to that effect from the purchaser on demand and without protest or demur.
4. It is fully understand that this guarantee shall become effective from the date of the said contract and that we,(Name and address of the Scheduled Bank issuing

the BG) undertake not to revoke this guarantee during its currency without the prior return consent of the Purchaser.

5. We,..... (Name and address of the Scheduled Bank issuing the BG) hereby further agree that the purchaser shall have the fullest liberty, without affecting in any manner our obligations hereunder to vary any of the terms and conditions of the said contract or to extend the time of performance of the said contract by the supplier from time to time or to postpone for any time or from time to time any of the powers exercisable by the purchaser against supplier and to forbear or to enforce any of the terms and conditions relating to the said Contract and we,..... (Name and address of the Scheduled Bank issuing the BG) shall not be released from our liability under this guarantee by reason of any such variation of extension being granted to the supplier or any forbearance and / or omission on the part of the Purchaser or any indulgence by the Purchaser or by any other matter or thing whatsoever which under the law relating to sureties would, but for this provision, have the effect of so releasing us from liability under this Guarantee.
6. We,(Name and address of the Scheduled Bank issuing the BG) hereby further agree that the Guarantee herein contained is initially valid up to and the same shall be extended further according to the provisions contained herein above. The claim period is 6 (Six) months beyond the original validity period of the BG up to
7. We,.....(Name and address of the Scheduled Bank issuing the BG) hereby further agree that the guarantee herein contained shall not be affected by any change in the constitution of the Supplier and / or the Purchaser.
8. We,(Name and address of the Scheduled Bank issuing the BG) hereby further agree that this Guarantee is operable and enforceable at SALEM Branch of(Name of the Scheduled Bank), and in case of invoking of the guarantee before expiry of the same at SALEM Branch of the bank as mentioned above, the Guarantee amount or any part claim will be paid by our above named branch against written claim or demand notice served at SALEM Branch as mentioned above on or before validity period of the Bank Guarantee.

For and on behalf of(Name, Address and e-mail id of the scheduled Bank issuing the BG)

Signature:.....

Name:

Address:.....

E-Mail ID:

Phone No.

Duly Constituted attorney & authorized signatory

Designation:

Note: The BG issuing branch should send, by REGISTERED POST, an unstamped duplicate copy of the BG directly to the KEY CONTACT PERSON indicated in NIT with a covering letter to compare with original BG submitted by the Tenderer in the closed bid.

The successful tenderers are request to submit the BG towards SD cum PGB as prescribed above. In case of any clarifications/ corrections, the matter may be referred to contact person.

The BG should be operable at listed local Branch of SALEM.

The Claim period should be 6 (Six) months beyond the original validity period of BG.



सेल रिफ्रेक्टरी कम्पनी लिमिटेड, सेलम
SAIL REFRACTORY COMPANY LTD., SALEM.
 (A Govt. of India Enterprises)
 (A Subsidiary of Steel Authority of India Limited)

MANDATE FORM (for enabling E-PAYMENT)

Dear Sir,

We hereby give our consent to get all our payments through electronic mode i.e. EFT/RTGS/NEFT.

- | | |
|--------------------------|---|
| 1. Name of the Vendor | : SAIL REFRACTORY COMPANY LIMITED |
| 2. Address of the Vendor | : POST BAG NO. 565 SURAMANGALAM,
SALEM, TAMILNADU. |
| Pin Code | : 636 005. |
| IT PAN | : AAQCS7998J |
| GST No. | : 33AAQCS7998J1ZB |
| E-Mail ID | : sreclfin@gmail.com |
| Tel. No | : 0427 – 2341409 |
| Fax No | : 0427 – 2341407 |
| 3. Bank Particulars | |
| a) Bank Name | : STATE BANK OF INDIA |
| b) Branch Name & Address | : SALEM STEEL PLANT CAMPUS
MOHAN NAGAR TOWNSHIP, NEAR GATE NO.2,
SALEM – 636 030. |
| c) Account Number | : 32175149829 |
| d) IFSC Code | : SBIN0005739 |
| e) Account Type | : CURRENT ACCOUNT |

We hereby declare that the particulars furnished are correct and complete.

For SAIL Refractory Company Limited

GM (Finance)
 Signature of the Vendor with seal

For Bank Use :

Certified that the bank particulars furnished are correct as per our record

For STATE BANK OF INDIA
 शाहू शास्त्रीय स्टेट बैंक

 BRANCH MANAGER, SSP CAMPUS-05739
 Signature of the Bank with seal

Reverse Auction through MJunction

Purchase Cost Reduction Objectives of SRCL

- To achieve this target, SAIL Refractory Company Ltd is adopting the on-Line Reverse Auction (RA) methodology.

Key Features

- This Invitation To Tender (ITT) /Request for Quotation (RFQ) is subject to the general conditions of contract and other terms and conditions detailed herein and in the enclosed annexure.
- Use on-Line Reverse Auction (RA) for price bid evaluation.
- Evaluation of the lowest tenderer (L1) shall be as per Rules & Regulations Governing conduct of On-Line Reverse Auction - Annexure IV-A AND AS PER THE BIDDING STRATEGY ADOPTED BY MJUNCTION SERVICES LIMITED..
- L1 Tenderer to get maximum share of order, if not constrained by capacity /capability (as assessed by SRCL), in case of multiple sourcing and the same shall be guided by SAIL Purchase Contract Procedure-2009 (PCP-24).

HOW TO SUBMIT BID

- The tenderer shall obtain the tender documents **by down loading from SAIL website www.sailtenders.co.in (Plant : SAIL REFRACTORY COMPANY LIMITED) on free of cost.** Tenderers will have to submit the EMD & Techno-Commerical Bid including particulars mentioned in the Eligibility criteria as the first stage.
- Tenderers will have to completely fill up the **Annexures** of the RFQ, as applicable, which are to be signed by their authorized person with their official seal affixed.
- Tenderers will have to submit all the attested / certified copies of the documents called for in this tender document.
- The Price Bid evaluation shall be done through on-line reverse auction over internet in the second stage among the techno-commercially acceptable Tenderers, after assessment by SRCL.
- The tenderer has to submit online Price BID on the EPS portal along with techno commercial bid. SRCL reserves the right to opt for Reverse auction or otherwise.

PRICE BIDDING:

- Tenderers will be required to participate in on-line reverse auction over internet for Price Bidding.
- The schedule and details of the Reverse Auction event shall be communicated in due course by the Service Provider.

SUMMARY OF EVALUATION PROCESS

The bid evaluation process will comprise of two steps:-

- Step-I: Technical/commercial/legal/financial capacity.

- Step-II: Price Bid evaluation by on-line reverse auction over Internet.

Technical/Commercial/Financial/Legal valuation (TCFL):

The TCFL Evaluation process shall be carried out by a committee as constituted by SRCL. The TCFL evaluation process will comprise of the following steps:

- The TCFL Evaluation Team will scrutinize each Tenderer's bid and decide the acceptance of each item and other technical terms quoted in the RFQ.
- As a part of Commercial evaluation process, the SRCL will verify whether the Tenderers have agreed to the Commercial Terms specified herein.
- In case of any doubts with respect to any point of the Tenderer's Technical & Commercial Bid, clarification may be sought from the Tenderer and in case of non-confirmation **within the specified date**, the bid is liable to be rejected.
- SRCL Shall Classify Tenderer as technically acceptable / unacceptable after evaluating the bids for the stipulated requirements of the Tender.
- In case any specific adverse report is received against a Tenderer, as an information or upon inquiry made by SRCL, in respect of capabilities and performance of the Tenderers, after receipt of tender but before the participation in Reverse Auction, the tender of that Tenderer shall be rejected on the basis of recorded reasons. If such report is received after the Reverse Auction then also, the tender of that Tenderer shall be rejected after recording the reasons.

Price Bid Evaluation

- Price bid evaluation process shall be carried out as indicated in the Rules & Regulations Governing conduct of On-Line Reverse Auction in the **Annexure**.

SERVICE PROVIDER (SP) AND THE ISSUANCE OF RFQ

- SRCL has engaged the services of its Joint Venture Company M/s MJunction services limited (MJ) for conducting the Reverse Auctions on behalf of SRCL. MJ is fully authorised to give clarifications / coordinate with the suppliers in consultation with SRCL w.r.t conduct of Reverse Auction for appointment of Transporter. Their address is given below:

Corporate Office	Chennai Office
MJunction services limited Godrej Waterside Tower 1, Block DP, Plot-5, 3rd Floor, Salt Lake Kolkata- 700091	MJunction services limited Basement, New No. 91, Old No.44, Armenian Street, Chennai- 600001
Ph : 033 – 66011721 to 1725 Fax : 033 –66011719	Fax : 044-25216536

Contact Persons	
Corporate Office	Chennai Office
Ms. Vani Burra Mobile No. 9163348103 Direct No.033 -66106299 e-mail: Vani.burra@MJunction.in	Mrs. Uma.R Ph: 044 -64624733 to 35 e-mail: uma.r@MJunction.in

- M/s Mjunction Services Limited shall intimate those Tenderers whose Techno-Commercial Bids have been accepted by SRCL to participate in the Reverse Auction on the date as notified by them.
- M/s Mjunction will explain the Reverse Auction process to all the prospective tenderers and clarify issues, if any. It will be the responsibility of the tenderers to get themselves acquainted to their satisfaction with the on-Line bidding process by thoroughly interacting with Mjunction.
- Only SRCL will be empowered to approve any deviations from the ITT/RFQ asked for by the Tenderer. Unless otherwise intimated by SRCL in writing, the tender conditions remains un altered.
- **Vendor Enablement** – MJ shall have the responsibility of familiarizing the tenderers with the Reverse Auction Process (including training to the vendors).
- Rules and Regulations governing the conduct of Reverse Auction and Definition of Key Terms of Reverse Auctions are given in Annexure IV (A) and (B) respectively.

GROUND RULES FOR PARTICIPATION/INFORMATION TO TENDERERS

- Tenderers should provide complete, clear and thorough responses to all information requested in the RFQ document. If any one of the forms attached is not submitted or is incomplete in any respect, the bid is liable to be rejected.

KEYDATES:

- Techno-Commercial Bids, will be accepted upto and will be opened at the time specified in tender document in the office of GM (COMML) or his representative or any other office as directed by him.

SUBMISSION OF BIDS & OTHER INSTRUCTIONS

Tenderers are requested to submit **only the Techno- Commercial Bid as described in the RFQ.**

The Techno-Commercial bid shall not contain prices or any indication of prices, else the offer will be rejected.

Ensuring participation

- To participate in the Reverse Auction from their own office / own arrangement - In such an event the bidder has to make arrangement for ensuring connectivity throughout Reverse Auction. For this option bidder shall be solely and exclusively responsible for ensuring continuance of connectivity. SRCL shall in no way be responsible for the consequences arising out of disruption of connectivity. In case the bidder desires,

efforts will be made to provide assistance during the reverse auction phase by deploying skilled persons from service provider / authorized representative at the participating vendor locations. However, SRCL or Service Provider shall in no way be responsible for ensuring connectivity.

- In case, there is loss of connectivity for a continuous period not exceeding 15 minutes during the last half of an hour of the conduct of Reverse Auction for that particular Market, the period of RA shall be extended by an equal period or more and during which the bidder is connected, otherwise the auction will be called off for that particular Market. **The decision of SRCL in this regard is final and binding.**
- The Tenderers have to confirm through a letter/fax (033-66011725 and also to 0427-2341407), their last quoted prices within one hour of concluding the Reverse Auction as per format furnished by the auctioneer.
- Written Acceptance in-toto to all the Terms & Conditions mentioned in this tender document is a pre-requisite for securing participation in the on-line reverse Auction conducted by M/s Mjunction on behalf of S R C L the products / services above. Hence, the tenderer is requested to sign this document on each page. The tenderer shall also complete the form given for furnishing the details of the person authorized by the firm to participate in the Reverse Auction. The 'USER -ID' and 'PASSWORD' will be given only to this authorized person.

For any clarifications, please contact:

Ms.SatyavaniBurra

Mobile No. 09163348103,

Direct No. 033 66106299

[E-mail: vani.burra@mjunction.in](mailto:vani.burra@mjunction.in)

Fax No: 033-66011725

Ms. R Uma

Tel No. 044- 64624733/34/35

uma.r@MJunction.in

- To be faxed within one hour of concluding the Reverse Auction General Rules and Regulations governing conduct of On-line Reverse Auctions on the MJUNCTION platform and Terms and Conditions of the Buyer(SRCL)

INTRODUCTION

The General Rules and Regulations provided herein govern the conduct of On-line Reverse Auctions operated by Mjunction.com Private Ltd. These rules cover the roles and responsibilities of the parties in the On-line Reverse Auctions on the Mjunction platform.

Acceptance in-tototothese General Rules and Regulations is apre-requisite for securing participation in the On-line Reverse Auctions on the Mjunction platform.

The key terms pertaining to the On-line Reverse Auctions are provided in the Annexure IV - B. Prospective bidders are advised to read through the same.

Role of Mjunction

Mjunction is the agency (operator) primarily providing the forum for conducting the Reverse Auction. As the agency providing the auction engine, the role of Mjunction would include:

- input of the details of the auction items and defining of the bidding rules as desired by the client, market making and training of prospective vendors
- Providing access to the approved vendors to participate in the auction.
- enhancing tenderer awareness of and comfort with the auction mechanism and bidding rules
- summarizing of the auction proceedings & communicate the outcome to the Client
- The responsibility for fulfillment of the contract rests between the tenderer and the client, and Mjunction shall have no liability on this account.

Role of the Tenderer

The role of the tenderer is outlined below:

- a) The tenderer would participate in the Reverse Auction with the aim of bidding to secure the auctioned item in the auction (being selected for supplying the client's requirement in a Reverse Auction).
- b) The tenderer would be provided access to the Auction through a User Id protected by a password. The tenderer needs to ensure that the User Id and password is not revealed to unauthorized persons.
- c) Access to the auction mechanism shall be provided to all the approved tenderer subsequent to obtaining their written consent to the General Rules & Regulations.
- d) In the event of winning an allotment in the auction mechanism, the tenderer shall commit to fulfill outlined obligations under the contract.

Bidding Rules:

The Bidding Rules refer to the information and terms defined specifically for a particular Reverse Auction. The purpose of the Bidding rules is to provide approved tenderer with the information and terms specific to the auction in which they are bidding. This would include:

- Definition of the unit of bidding Start Time and duration of the Reverse Auction
- Any extension of the duration of the auction in the event of bids being received towards the end of the pre- specified duration
- Reserve Price (if specified)
- Minimum & Maximum Bidding Quantity (if specified)
- Price Decrements and any reduction in the price decrements in the auction in the event of inactivity
- Other attributes (informational/non-negotiable in nature)
- Participation in the auction process presumes complete awareness and understanding of the bidding rules.

Conduct of the Reverse Action

- The Reverse Auction shall be communicated on pre-specified date.
- Mjunction retains the right to cancel or reschedule the Reverse Auction on any of the followings reasons: The number of confirmed tenderers is deemed insufficient to conduct the Reverse Auction Some of the confirmed tenderers are unable to access

the module due to infrastructural problems such as sustained power failure or telecommunication breakdown.

- No bid shall be accepted which is above any start bid price, or
- It is determined that one or more tenderers have submitted bids which are clearly below Cost. If the buyer decides so.
- The duration of the auction may also vary from the pre-specified period of time on account of termination of the auction by Mjunction:
 - a) on the advice of the client or
 - b) on its own accord in case of situations where it is felt that continuance of the auction proceedings is prejudicial to the smooth conduct and/or the integrity of the auction process.

L-1 Definition–As defined in tender documents

Liability of Mjunction

Mjunction shall not be liable to the client/ in the auction or any other person/s for:

- Any breach of contract by any of the parties in the fulfillment of the underlying contract
- Any delays in initiating the On-line auction or postponement/cancellation of the On-line auction proceedings due to any problem with the hardware/ software/ infrastructural facilities or any other shortcomings.

Confidentiality Clause

- Mjunction undertakes to handle any sensitive information provided by the client or confirmed for the Reverse Auctions with utmost trust and confidentiality.

Jurisdiction

- Any disputes relating to the On-line auction module shall be subject to the sole jurisdiction of civil courts of Kolkata only to the exclusion of any other court.

Right of the Client

- SRCL reserves the right to fully/ partly accept the bids or completely reject the same.

Mjunction retains the right to extend or cancel or reschedule the reverse auction on any of the following reasons:

Sl	Circumstance	Action
01	Auto Extension Of Bidding Time	ONLY in the event of any bid being placed in the last 3 minutes of the scheduled bidding time, the bidding time shall automatically extend by 3 minutes from each such bid. This Auto Extension mechanism remains activated until a continuous inactivity period (i.e. no bids being placed by any bidder) of 3 minutes is reached at which

02	Cancellation of event / bid	1. The number of confirmed bidders is deemed insufficient to conduct the reverse auction. 2. On Advice of the Buyer 3. MJ on its own accord - in case of situations where it is felt that continuance of the auction proceedings is prejudicial to the smooth conduct and/or the integrity of the auction process. 4. Cancellation/ premature termination of the reverse auction with/ without a subsequent rerun of the auction on a mutually decided date between Client and MJ. 5. Cancellation of a wrong bid 6. Locking a bidder's account (suspension of operations in the account)
03	Poor Participation	1. Manual extension carried out if less than 10 bids received 2. Reserve / expected price not met. It is determined that one or more bidders have submitted bids which are clearly below Cost 3. On the advice of the Buyer
04	Unable to access the module due to infrastructural problems - Internet Problems being reported by bidders	1. Manual extension carried out till connectivity restored or MJ will bid on behalf of bidder after obtaining suitable authentication. 2. The number of extensions and the time involved in each extension is on the judgment of the auction controller concerned.
05	MJ server not able to connect to the Internet cloud	To the extent possible, all auctions will be extended until the problem is resolved/ internet connectivity of MJ machine improves. Ability to extend depends upon time available, as also ability of MJ staff to connect to the MJ machine.
06	Power failure/ Planned power shutdown in his area reported by an interested supplier	MJ will bid on behalf of bidder after obtaining suitable authentication. (The party will inform his minimum price and will also inform his user id and password) Manual extension may be involved if the call is received just before closure, and MJ staff does not have sufficient time required to make a bid.
At the request of the Client, Mjunction may permit bidding through a combination of online and offline means (offline means including phone/fax/email). However in such event, Mjunction would not be responsible for any errors in transmission or entry of the information received in the offline medium. It must be expressly understood that such facilities if and when extended are only for the convenience of bidders and, while reasonable care and caution shall be taken by Mjunction, the ultimate responsibility for the same shall rest with the bidder/s.		

DEFINITION OF KEY TERMS

Reverse Auction

Reverse Auction refers to a forum where the requirement for one/ more Markets of an item is stated and the participants are required to bid down the price to be selected to supply the requirement.

On-line Reverse Auctions

On-line Reverse auctions refer to those Reverse Auctions conducted through the Internet with simultaneous bidding (from one or more locations). In other words, the venue for the auction is on

an Internet website/ platform. The Mjunction website (<http://www.buyjunction.com/>) or any other URL assigned by Mjunction would constitute the venue for the purpose of the On-line auction.

Award at the Reverse Auction

The tenderer quoting the lowest price is normally allotted the item unless otherwise specified by the Client.

Client

Client is the individual/business entity who has contracted Mjunction to conduct such Reverse Auction. In case of Reverse Auction, the purpose would be to meet their requirement for item/s from among the sellers desiring to sell the items to the Client.

Tenderer

Tenderer is the individual/business entity participating in the Reverse Auction, intending to supply the item/s to the Client. To become a Tenderer in the auction, a business entity has to secure client approval for participation and also provide written assent to the General Rules and Regulations

Auction Engine

Auction Engine refers to the software that encapsulates the entire auction environment, processing logic and information flows. Mjunction is the sole owner of the auction engine and retains exclusive right over the utilization of the same.

Preview Time

Preview Time refers to the period of time that is provided prior to the commencement of bidding. This is to facilitate approved participants to view the auction details such as item specifications, bidding details and bidding rules. The purpose is also to familiarize participants with the functionalities and screens of the auction mechanism. It is not mandatory for Mjunction to provide Preview Time.

Start Time

Start time refers to the time of commencement of the conduct of the On-line auction. It signals the commencement of the Price Discovery process through competitive bidding.

Duration of the Reverse Auction

It refers to the length of time the price discovery process is allowed to continue by accepting bids from competing tenderers. The duration of the auction would normally be for a pre-specified period of time. However, the bidding rules may state the conditions when the pre-specified duration may be extended/curtailed. The conditions include:

- Curtailment of auction duration in the event of no bids for a specified period of time (Inactivity Time)
- Automatic extension in the event of bids being entered towards the end of the scheduled duration to facilitate the other tenderers to view and react to the bid.

Auto Extension of the Auction Timings

In the event of bids in the last few minutes of the scheduled bid time, the Bid Timings are automatically extended for a specified period from each such bid. Such Auto Extension shall continue until no bids are placed for the specified period (Engine remains inactive for the specified Period). The Inactivity Time for Auto Extension purpose is normally 3 minutes. Mjunction however retains the right to change the same in consultation with SRCL. The Inactivity Time applicable for the particular On-Line Bid shall be communicated to the tenderer if it will be set to a value less than 3 minutes.

End of the Reverse Auction

End of the Auction refers to the termination of the auction proceedings signaling an end to the price discovery process.

Auction Report

Mjunction would provide an Auction Report to the Client containing a summary of the auction proceedings and outcome. The Auction Report would constitute the official communication from Mjunction to the client about the outcome of the Reverse Auction.

ID and Pass Word - Pass Word and ID shall be given to all the eligible vendors by the Service Provider for enabling the vendor to participate in the Reverse Auction.

Start –Bid Price – Start Bid Price is the estimated Price of a lot decided by lowest of Online Sealed Bids. This is the Maximum Price, which will be accepted by the Reverse Auction engine. Supplier have to quote a price lesser than the Start Bid Price for participating in the Reverse Auction. The computer shall not accept Price higher than Start Bid Price for a lot. Bidding will start at start Bid Price to be intimated in advance to the vendors eligible for bidding. This will be put up on the site and will also be communicated in advance through Fax/ email.

Minimum Decrement - Minimum decrement is the minimum amount a supplier has to reduce in order to beat a higher bid. For example, if a tenderer bids Rs 10,00,000/- for a Market, others, in order to beat this bid, have to quote a lower price with a minimum decrement say of Rs 100/- i.e. in order to be eligible they have to quote Rs. 9,99,900/- (or lower) for the same Market. This minimum decrement shall be pre-decided by SAIL Refractory Company Limited and will be in-built and displayed in the computer.

PROXY BID - In the following circumstances, a tenderer may opt for proxy bidding.

Where the tenderer is not confident of a reliable Internet Connectivity

Where the speed of Internet Connection is slow and unable to catch-up with the speed of competitor's bids.

To remain a leading tenderer till the lowest bid value fed in the auction machine.

Where the tenderer is required to put bids in more than one Market/Lot at a time Following is the outcome when a tenderer exercises the proxy option:

A proxy bid remains L1 till the lower bid value fed in the auction machine is exhausted i.e. a lower bid, less than the lower bid value offered by the tenderer exercising the proxy, is offered by another tenderer. If a tenderer bids a price equal to the lower limit of the proxy bid, the proxy tenderer gets precedence over him at that price.

To let the system place bids on your behalf you need to check (click) the proxy bid box on the bidding details page and place the lowest value to which you can bid and then place submit button and confirm. Once the proxy is activated the bids are placed automatically as per the minimum decrements. The lowest value of your proxy bid amount is not visible by any other tenderer.

Example: Suppose, the current bid in the market is Rs.10000 and the min. decrement is Rs.100 and you have activated proxy till Rs.9500. Now say a tenderer places a bid of Rs.9800, the system automatically bids Rs.9700 on your behalf at the same time and keeps you as a leading tenderer.